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File No.: EXP202311416

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RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. on 25/08/2023 filed a complaint, with entry registration number ***REGISTRO.1, before the Spanish Agency for Data Protection against TUMBEX.COM and YOULLO.NET.

The reasons supporting the complaint are as follows:

A.A.A. states that when they had (...) on the platform ***PLATAFORMA.1 for publication, they used a false name. Despite successfully having the content removed from the platform, many of them were exported to other servers.

According to A.A.A., through the facial recognition website Pimeyes.com, they have found out where some of that content is currently published, but have not been able to have it removed. They claim to have contacted ***PLATAFORMA.3 a year ago, without success, and that ***PLATAFORMA.4 does not provide any contact avenue.

Along with the complaint, they provide, among others, the following documentation:

- The URLs where the images subject to the complaint appear:

(...)

- Screenshot of the email that, according to A.A.A., was sent to the platform ***PLATAFORMA.2 requesting the removal of the images contained in the platform ***PLATAFORMA.4. This screenshot shows that the email was sent on ***FECHA.1 with the following content (unofficial translation from English):

“(...)”

- Screenshots of the response emails that, according to A.A.A., were received from the platform ***PLATAFORMA.2. These screenshots show that the emails were received on ***FECHA.1 and ***FECHA.2, and contain the same text. Their content is as follows (unofficial translation from English):

“(...)”

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SECOND: On 25/08/2023, this Agency verified that the images subject to the complaint were still locatable at some of the URLs such as ***URL.1.

THIRD: On 25/08/2023, in accordance with Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint filed was accepted for processing.

FOURTH: On 19/09/2023, A.A.A. submitted a new document to this Agency, with entry registration number ***REGISTRO.2, in which they expressed gratitude for the removal of the images indicated in the previous complaint and noted having found more images at ***URL.2 and ***URL.3; pages from which they requested removal without receiving any response.

They attached the following documentation:

- Screenshot of the email that, according to A.A.A. (***EMAIL.1), was sent to the platform ***PLATAFORMA.2 requesting the removal of the images contained in the platform ***PLATAFORMA.3. This screenshot shows that the email was sent on ***FECHA.1 with the following content (unofficial translation from English):

“(...)”

- Screenshot of the “Information on Rights” form from the website ***PLATAFORMA.1 indicating that regarding photographs that infringe rights, “your request will be processed within 48 hours” (unofficial translation from English).

- Screenshot of the email that, according to A.A.A. (**EMAIL.1), was sent to **EMAIL.2 requesting the removal of the images contained in **URL.4. This screenshot shows that the email was sent on **FECHA.3 with the following content (unofficial translation from English):

“(…)”

FIFTH: On 19/09/2023, this Agency verified that the images locatable at the URLs indicated in the new document remained available.

SIXTH: On 25/09/2023, A.A.A. submitted a third complaint to this Agency, with entry registration number **REGISTRO.3, in which they corrected the age they were when they published the images. Specifically, they indicated that “(…)”. The URLs attached are identical and correspond to the same content already reported in the previous complaint, for which this Agency had already made a removal request directed to the responsible parties of the web portals.

SEVENTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in the

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Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On 25/08/2023, the publication of the reported content was verified on the various URLs provided by A.A.A., belonging to the domains **PLATAFORMA.3 and **PLATAFORMA.4, confirming that the content was only available through the two links belonging to **PLATAFORMA.3, having been removed from the other domain.

On this same date, a first request for collaboration to remove the content was made, directed to the website **PLATAFORMA.3 and utilizing the links provided on the website.

2) On 20/09/2023, a second request for collaboration was made to the websites **PLATAFORMA.1 and **PLATAFORMA.3 in order to pursue the removal of the new content provided in the second complaint dated 19/09/2023; in this case, the following email addresses linked to the reported portals were used: **EMAIL.3 and **EMAIL.4.

3) On 27/09/2023, it was verified that the content had been removed from all the reported portals.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

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The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conclusion

On 25/08/2023, 19/09/2023, and 25/09/2023, A.A.A. submitted three complaints in which he stated that, when he was between (...), intimate photographs of him were published on the platforms ***PLATAFORMA.3, ***PLATAFORMA.4, and ***PLATAFORMA.1; but that he would now like them to be removed.

The documentation in the administrative file records the removal requests that A.A.A. sent to the various platforms between August and September of the year 2022; several of the photographs remained available a year later when this Agency conducted the corresponding checks. However, within the framework of the preliminary investigative actions carried out by the Data Inspection Subdirectorate, on 27/09/2023 it was verified that all the content reported by A.A.A. was no longer published.

The GDPR requires that the processing of personal data be lawful, which must be based on one of the legitimizing bases listed in its Article 6.1.

In this case, it is evident that the processing of personal data concerning the publication of intimate photographs of A.A.A. that were carried out until their removal by the portals ***PLATAFORMA.3, ***PLATAFORMA.4, and ***PLATAFORMA.1 was based on the assumption detailed in point a) of the GDPR regarding the consent of the

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interested party; since it was (...) who, at the time, published the contents subject to the claim.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY the present resolution to TUMBEX.COM, TUMBLRGALLERY.XYZ, and YOULLO.NET and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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